



DEPARTMENT OF LABOR AND EMPLOYMENT

Division of Labor

COLORADO WORKS PROGRAM ACT GRIEVANCE PROCEDURE RULES

7 CCR 1103-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Section 1 Basis, Purpose, and Statutory Authority

The purpose of the following rules is to establish a grievance procedure for use by the employment community in matters related to welfare reform in compliance with sections 26-2-716 (3)(a) (IV), (b) of the Colorado Works Program Act, (CWPA) and provisions of the Personal Responsibility and Work Opportunity Reconciliation Act, (PRWORA) of 1996, as amended. **The director of the division of labor has the power to adopt, amend, or rescind, in accordance with section 24-4-103, and 8-1-107 (2)(r) C.R.S., as amended reasonable and necessary rules relating to the administration of the grievance procedure of the Colorado Works Program Act.**

Section 2 Powers and Duties

The labor standards unit in the division of labor is responsible for administering the provisions of these rules. In carrying out the provisions of these rules, the director of the division of labor has all applicable duties and powers as outlined in Title 8, Article 1 of Colorado Revised Statutes, as amended.

Section 3 Definitions

3.1 - Definitions

THE FOLLOWING DEFINITIONS APPLY TO THESE RULES ONLY:

- 3.1.1 Administrator: **the administrator of the labor standards unit in the division of labor.**
- 3.1.2 Administrative Law Judge (ALJ): an administrative law judge appointed pursuant to section 24-30-1003, C.R.S., as amended.
- 3.1.3 Adult: the head of a household, including an emancipated minor or an individual over the age of 18.
- 3.1.4 Complaint: a completed complaint form, or other document containing essentially the same information, received by the division of labor, with regard to a potential violation of the provisions of the Colorado Works Program Act, or these rules.
- 3.1.5 Complainant: a person who has filed a complaint with the division of labor.
- 3.1.6 Director: the director of the division of labor.
- 3.1.7 Displacement of a regular employee by a participant: includes but is not limited to:
 - (a) A reduction of hours (regular or overtime), compensation, or fringe benefits,

- (b) A failure to restore a regular employee to the same or equivalent position after the conclusion of approved leave of absence, including but not limited to vacation, sick, maternity, family/medical leave, military reserve training or a Workers' Compensation related temporary disability,
 - (c) Replacement while on a strike, lockout or other organized labor dispute,
 - (d) Terminations, suspensions, reductions in workforce, or layoffs for the purpose of displacement,
 - (e) Other displacements as determined by the director or administrative law judge at any proceedings conducted under the provisions of these rules.
- 3.1.8 Division: the division of labor in the Colorado Department of Labor and Employment established by section, 24-1-121 (3)(a)(I), C.R.S, as amended.
- 3.1.9 Employee: any adult, performing labor or services for the benefit of and subject to the direction and control of an employer.
- 3.1.10 Employer: any individual, limited liability company, partnership, corporation, association, county, and public or private organization of any character employing any Temporary Assistance for Needy Families (JANF) welfare to work participant in Colorado.
- 3.1.11 Executive Director: the executive director of the department of labor and employment.
- 3.1.12 Final Determination: the decision of the director at Step II - Director's Hearing unless appealed to Step III - Administrative Law Judge. In such cases the final determination is the decision of the administrative law judge.
- 3.1.13 Final Investigative Report: the final investigative report released by a division investigator at step I of the grievance process. The report shall contain findings, recommendations, and appropriate material responses from interested parties.
- 3.1.14 Finding: a summary of a condition, in a preliminary or final investigative report, which is substantially out of compliance, or may have a material impact on an employer's positive participation in programs authorized by the *Colorado Works Program Act*.
- 3.1.15 Full time: performing work for the benefit of an employer for a minimum of 32 hours per work
- 3.1.16 Hearing: a hearing as described in the Section 7 - Grievance Procedure of these rules.
- 3.1.17 Investigator: an investigator of the division of labor.
- 3.1.18 Investigator's Determination: the initial findings and recommendations made by the investigator in the final investigative report.
- 3.1.19 Participant: an adult participating in a Welfare-to-Work component of the CWSA or Subtitle A, (TANF Block Grant) of the Personal Responsibility and Work Opportunity Act of 1996, as amended. A participant becomes a regular employee when he/she attains permanent employment, and is no longer receiving public assistance under the TANF programs referenced in section 3.1.26.

- 3.1.20 Person: any individual, corporation, government, or governmental subdivision or agency, business trust, estate, trust, limited liability company, partnership, association, or other legal entity.
- 3.1.21 Preliminary Report: the initial report prepared by a division investigator in step I of the grievance process, and is intended to inform interested parties of the likely content of the final investigative report, and to prompt written responses to the findings and recommendations contained in the report.
- 3.1.22 **Program:** refers to organized strategical plans, with regard to welfare reform, as referenced and authorized in the *Colorado Works Program Act (CWPA)*, or the *Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA)*, as amended.
- 3.1.23 Recommendation: an official suggestion, in a preliminary or final investigative report, regarding the actions an employer might take to bring an outlined condition into compliance, or interested parties might take to bring resolution to an outlined dispute.
- 3.1.24 Re-determination: the review conducted by the administrator of the labor standards unit in the division of labor.
- 3.1.25 Regular Employee: an employee who is not a participant, and who was working for an employer during the period relevant to any complaint filed under these rules.
- 3.1.26 Temporary Assistance for Needy Families (TANF): Refers to the implementation of federal block grants assistance under the *Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA)*.

Section 4 Employer Records

Each employer participating in any welfare reform program, at any level, shall maintain true and accurate work records containing such information as the division may prescribe. Such records shall be maintained for a period of not less than five years and shall be open for inspection and be subject to copying in accordance with section 8-1-117, C.R.S., as amended.

Information obtained, pursuant to an investigation conducted under these rules, shall be confidential and shall not be open to public inspection. In the administration of the *Colorado Works Program Act* and the rules promulgated in accordance with that act, the division shall cooperate with the county governments of the State of Colorado, the Colorado Department of Human Services, the United States Department of Labor, and the United States Department of Health and Human Services to the fullest extent consistent with the provisions of these rules.

Section 5 Grievance Process

This section documents the steps of the grievance process. For the **Grievance Procedure** see Section 7.

5.1 Step I - Complaint

- (a) Complaint
- (b) Investigation
- (c) Preliminary report
- (d) Final report (determination)

- (e) Protest findings and recommendations in the final investigative report
- (f) Administrator's review (re-determination)
- (g) Administrator's settlement conference
- (h) Appeal to **Step II - Director's Hearing** within fifteen (15) calendar days of the date of the administrator's decision
- (I) If no such appeal is filed, the decision of the administrator becomes final

5.2 Step II - Director's Hearing

- (a) Hearing
- (b) Issuance of decision (final order). Such order shall represent the agency's final determination
- (c) Appeal to **Step III- Administrative Law Judge** within thirty (30) calendar days
- (d) If no such appeal is filed, the decision (order) of the director shall become final

5.3 Step III - Administrative Law Judge Appeal

- (a) Review conducted at the division of administrative hearings in the department of personnel
- (b) The administrative law judge shall render a decision within one hundred twenty (120) days of the receipt of an appeal
- (c) Appeal to **Step IV - Judicial Review** within thirty (30) calendar days of the decision of the administrative law judge
- (d) If no such appeal is filed, the decision of the administrative law judge becomes final

5.4 Step IV - Judicial Review - Courts

- (a) Judicial review in accordance with the provisions of 24-4-106: C.R.S., as amended.

Section 6 Remedies

6.1 Remedies Authorized

- (a) For the purposes of these rules, remedies authorized may include, but are not limited to:
 - 1. Back pay
 - 2. Reinstatement (with or without back pay)
 - 3. Restoration of benefit packages, including but not limited to;
 - vacation leave accrual
 - sick leave accrual
 - employer's contribution to retirement plans

4. Restoration of service credit (anniversary or hire date)
 5. Suspension or termination of payments from funds under the ***Colorado Works Program Act***
 6. Suspension or termination of future placement of participants with an employer who has knowingly violated any protections provided under these rules
 7. The director may order other equitable relief where appropriate
- (b) Nothing in this rule shall be construed to limit the ability or right of any individual or his or her exclusive bargaining representative from pursuing available procedures and remedies under any applicable collective bargaining agreement.
- (c) In the event the application of these remedies changes the placement status of a participant, such application should not be deemed to prejudice the participant's eligibility for benefits under any welfare reform program.

Section 7 Grievance Procedure

7.1 Step I

7.1.1 - Complaint

- (a) Any party who believes they have been displaced from employment in violation of the Colorado Works Program Act, can file a complaint with the division of labor - labor standards unit in the Colorado Department of Labor and Employment.
- (b) Complaints must be filed in writing, and contain:
- 1.) The name, address, telephone number, and social security number of the complainant.
 - 2.) The name, address and telephone number of the employer.
 - 3.) A summary of the complaint including the position last held by the complainant, the hire date of the complainant, the termination date of the complainant, and any information available on the person believed to have replaced the complainant.
 - 4.) Any other evidence that supports the validity of the complaint.

7.1.2 -Investigation

- (a) Upon receipt of a complaint the division will:
- 1.) Review the complaint to determine if it has jurisdiction to handle the complaint.
 - 2.) Assign the case to an investigator and conduct an investigation to gather and review evidence.
 - 3.) At the conclusion of the investigation the investigator shall issue a preliminary report. Such report will contain findings and recommendations; a copy of which will be made available to the complainant and employer.
 - 4.) Both parties will have fourteen (14) calendar days to provide comments, responses, or additional information for consideration.

- 5.) The investigator incorporates responses and other appropriate information into the report and issues a final investigative report.
- (b) If both parties agree with the findings and recommendations the parties shall submit evidence documenting the affirmative actions taken or agreed upon to settle the dispute. The investigator may assist in documenting such affirmative actions or agreement.
- (c) A complainant may not waive any rights, or accept a settlement amount of less than that recommended in the final investigative report except as agreed upon in a settlement conference before the administrator of the labor standards unit as provided for in section 7.1.3 (d) (3) and (4) of these rules.
- (d) Either party who wishes to protest the findings and recommendations in the final investigative report may request an administrator's review.
- (e) The request for an administrator's review shall be filed with the administrator of the labor standards unit of the division of labor, within fifteen (15) calendar days from the release date of the final investigative report.
- (f) If no protest, as provided for in subsection (d) of this section 7.1.2 is filed, the determination of the investigator in the final investigative report shall become final.

7.1.3 - Administrator's Review

- (a) Upon timely receipt of a request for an administrator's review from either party, the administrator shall;
 - 1.) Review the investigative report to determine that;
 - the investigative report was prepared in accordance with unit policy and procedure,
 - findings are reasonable and supported by substantial evidence,
 - recommendations are appropriate and reasonable.
 - 2.) If the administrator finds a material problem with the report, it may be returned to the investigation's unit for further follow-up work.
 - 3.) If the administrator finds no material problem with the report, both parties are notified of such decision and the parties are invited to participate in a settlement conference.
 - 4.) If all parties agree, the administrator schedules the settlement conference, and notifies all parties of the time and date of the conference.
 - 5.) If any interested party refuses to participate in a settlement conference, the grievance can be appealed to Step II - Director's Hearing within fifteen (15) calendar days of the administrator's decision.
 - 6.) The administrator shall within thirty (30) calendar days of the receipt of a request for settlement conference issue a re-determination decision.
 - 7.) The parties shall not request an appeal of the administrator's decision if a settlement conference as provided for in subsection 4 of this section 7.1.2

- (a) has been scheduled. The time limit for requesting an appeal to Step II of the grievance process will start at the conclusion of such settlement conference.
- (b) Any party wishing to appeal an adverse decision of the administrator may request a hearing before the director of the division of labor at Step II - Director's Hearing of the grievance process. Such appeal shall be filed with the director of the division of labor at the department of labor and employment within fifteen (15) calendar days of the date of the administrator's re-determination decision.
- (c) If no such request is filed, the decision of the administrator becomes final.

7.2 Step II - Director's Hearing

- (a) Upon receipt of a request for hearing to appeal the administrator's decision, the director of the division of labor shall schedule a hearing. Such proceeding shall be conducted in accordance with the *State Administrative Procedures Act*.
- (b) The director shall issue a decision within ten (10) calendar days of the conclusion of a hearing as provided for in sub-section (a) of this section 7.2. Such decision which shall be an order upon the parties.
- (c) Any party wishing to appeal an adverse decision of the director may appeal to Step III - Administrative Law Judge, by filing such appeal with the division of administrative hearings, and the division of labor within thirty (30) calendar days of the date of the director's decision (order).
- (d) If no such appeal is filed as outlined in subsection (c) of this section 7.2, the decision (order) of the director shall become final. Such decision shall represent a final determination, or final agency action.
- (e) The director may obtain a decree of the district court for the enforcement of such order upon showing that a party is subject to the jurisdiction of the division, and resides or transacts business within the county in which the petition for enforcement is brought.

7.3 Step III - Administrative Law Judge Appeal

- (a) An aggrieved complainant can file an appeal with the division of administrative hearings. A request for appeal can be filed by mailing or delivering the request to the offices of the Director of the Division of Labor, and the offices of the Chief Administrative Law Judge at the Division of Administrative Hearings. The request must be filed at both offices.
- (b) A copy of the appeal must also be mailed or delivered to all interested parties. The appeal should include reasons (exceptions) for why the decision of the director was not correct. The request for an appeal review should contain a mailing date and the parties notified should file a response to the exceptions within thirty days of that date. The response should be filed with the chief administrative law judge at the division of administrative hearings.
- (c) If any interested party intends to have a part, or specific parts, of the audio recording of the director's hearing transcribed, such request, formally referred to as a "designation of record", should be filed with the division of labor within twenty days of the date of the director's decision. A copy of the designate shall be mailed or delivered to all interested parties.
 - 1.) Upon receipt of a designation of records, or a request for appeal from any interested party, or the division of administrative hearings, the division of labor will forward the entire record to the division of administrative hearings along with any request for portions of the record

to be transcribed. The division of administrative hearings shall cause the requested portions of the audio recording to be transcribed.

- 2.) The cost of transcribing all or part of an audio tape of a proceeding shall be paid by the requestor. The division of administrative hearings may require the estimated cost of such transcript be paid in advance.
 - 3.) The entire record shall include, an audio tape of the Director's Hearing, along with all pleadings, applications, evidence, exhibits, and other papers presented or considered, matters officially noticed, rulings upon exceptions, any findings of fact and conclusions of law proposed by any party, and any written brief filed.
- (d) The administrative law judge shall review the record, and issue a decision within one hundred twenty (120) days of the receipt of the request for appeal.
 - (e) Any party wishing to appeal an adverse decision of the administrative law judge may appeal to Step IV- Judicial Review by filing an appeal within thirty (30) calendar days of the date of the decision of the administrative law judge in accordance with the provisions of section 24-4-106 C.R.S., as amended.¹
- ¹ Processes at this step are intended to comply with the State Administrative Procedures Act, specifically, 24-4-105, (14), (15), and (16), C.R.S., as amended. In the event of a conflict between the information contained in this section and an official printing of the State Administrative Procedures Act, the official printing will be the controlling document.
- (f) If no such appeal is filed, the decision of the administrative law judge becomes final. Such decision shall represent a final determination, or final agency action.

7.4 Step IV - Judicial Review - Courts

Judicial Review

- (a) Any appeal for judicial review of the decision of the administrative law judge, shall be brought in the appropriate district court for the district where the complainant resides by utilizing appropriate proceedings under section 24-4-106, C. R. S., as amended.
- (b) Such appeal proceeding shall be initiated by the filing of a petition in the appropriate district court and the service of a copy thereof upon the agency whose decision is the subject of the appeal, and upon all parties who appeared before the division of labor, or the division of administrative hearings. Thereafter such proceeding shall be processed under the rules of procedure of that court.

Section 8 Good Cause

Good Cause

- 8.1 - Request for good cause consideration - An interested party who files an untimely request at Steps 1-2 of the grievance process, or fails to appear at any conference, hearing, or appeal of those steps, may request the director to consider whether there was good cause for failing to meet a filing deadline, or appearance dates.
- 1) Any party requesting good cause consideration should file a statement, with the division, containing the reasons for why the filing deadline, or appearance date was missed. The requesting party shall notify all interested parties of such request.
 - 2) Any supporting evidence, which shall include documents outlining the method used to notify the parties, should be submitted as an attachment to such statement.

3) The requirements in both subsections 1 and 2 of this section 8.1 shall be met before a good cause consideration can be conducted.

8.2 - Good cause consideration - steps 1 - 2 The director will review such statement and supporting evidence and issue a decision on the good cause request. All interested parties shall be notified of such decision. If the director determines the requesting party had good cause for failing to meet the filing deadline, or appear, the grievance process shall continue as if the deadline had not been missed. If the director determines that good cause is not demonstrated, the determination, re-determination, or decision just prior to the request for good cause consideration shall become final.

8.3 - Good cause consideration - step 3 - The determination of good cause at step three of the grievance process shall be made by the division of administrative hearings.

Section 9 Deadlines

9.1 For the purpose of these rules, wherever a response, protest or filing deadline falls on a weekend or official State holiday, the last day to file shall be the next business day.

Section 10 Interventions

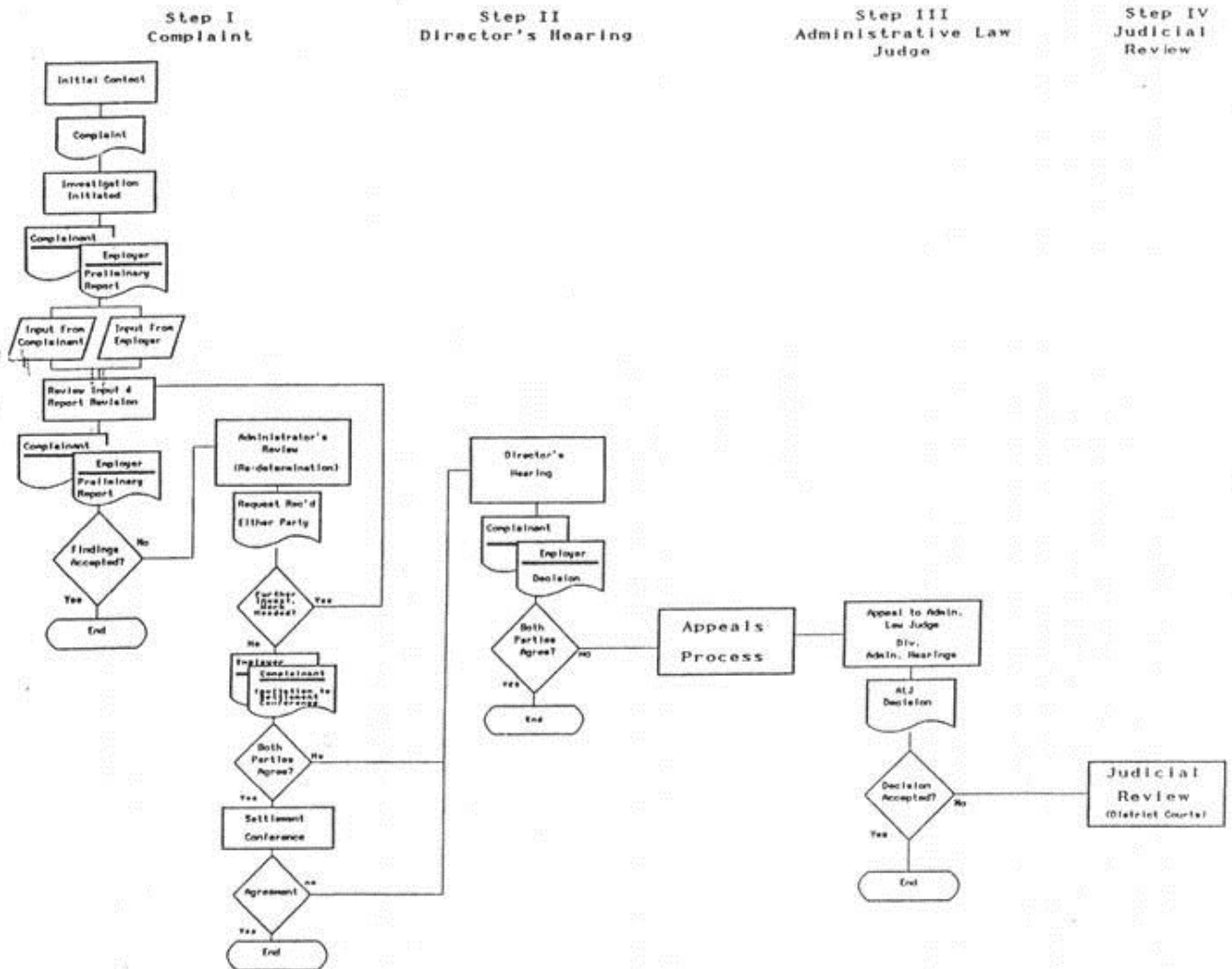
10.1 Any person may intervene in any proceeding by filing a motion to intervene demonstrating a substantial interest the person has that may be impacted by the proceeding.

Section 11 Severability

11.1 If any section, sentence, clause or phrase of this rule is for any reason held to be invalid, such decision shall not affect the validity of the remaining portions of the rule.

Division of Labor
Colorado Works Program Act
Grievance Procedure

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Editor's Notes

History